



CHAPTER 31.

An Act to amend the Law of Scotland relating to Jury Trials in Civil Causes. A.D. 1910.
[3rd August 1910.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. The words, "and, except upon special cause shown not later than three weeks from the date of such motion" occurring in section forty of the Court of Session (Scotland) Act, 1850, are hereby repealed. Repeal.
13 & 14 Vict.
c. 56.

2. If, after hearing parties upon (a) a rule to show cause why a new trial should not be granted in terms of section six of the Jury Trials (Scotland) Act, 1815, on the ground that the verdict is contrary to evidence, or (b) an appeal in terms of head (2) of section thirty-one of the Sheriff Courts (Scotland) Act, 1907, the Court are unanimously of opinion that the verdict under review is contrary to evidence, and, further, that they have before them all the evidence that could be reasonably expected to be obtained relevant to the cause, they shall be entitled to set aside the verdict and, in place of granting a new trial, to enter judgment for the party unsuccessful at the trial. Cases where
Court may set
aside verdict.
55 Geo. 3. c. 42.
7 Edw. 7. c. 51.

3. The Court of Session may from time to time make such regulations by Act of Sederunt as shall be necessary for carrying into effect the purposes of this Act. Power to make
regulations.

4. This Act may be cited as the Jury Trials Amendment (Scotland) Act, 1910. Short title.

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FOR

ROWLAND BAILEY, Esq., M.V.O., the King's Printer of Acts of Parliament.